

25LBCV01655 25LBCV01655

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-17

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Case Number: 25LBCV01655 Hearing Date: September 17, 2026 Dept: S27

1. Background

Facts

Plaintiff, Lyric Barnes filed this action against Defendants, ABC Liovin Drilling, Inc. and Marcos Cano for damages arising out of an automobile accident. Plaintiff alleges Cano was driving the automobile that caused the accident and ABC owned the automobile Cano was driving.

2. Discovery

Motions

a.

Relief Sought

Plaintiff propounded RPDs, FROGs, SROGs, and RFAs on Defendants, and Defendants served objections-only responses. Plaintiff attempted to meet and confer, but the issues were not resolved, and Plaintiff filed these motions to compel further responses. Four motions are directed at Cano and four are directed at ABC.

b. Objections

Only Responses

The burden to justify an objection to a discovery request is on the party asserting the objection. See *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

c. ABC

Liovin

ABC opposes the motions, contending further responses have been served and the motions are moot, but Plaintiff has refused to withdraw them despite an agreement that she would do so. Plaintiff did not file reply papers as to these four motions. The Court takes them off calendar as moot.

d. Cano

Cano also opposes the motion. Counsel declares he cannot reach his client, and asks that the Court deny the motion and/or not impose sanctions.

Parties have an independent obligation to stay in contact with their attorneys while litigation is pending. There is no authority presented for the position that, in the event an attorney cannot locate his client, a motion to compel can or should be denied, and discovery obligations can or should be in limbo indefinitely. The motions to compel are granted. Cano must serve further responses, without objections, within twenty days.

e. Sanctions

Plaintiff seeks sanctions in varying amounts in connection with each of the eight motions. Because the ABC motions are taken off calendar as moot, no sanctions are imposed in connection with those motions.

The Court finds sanctions against Cano and his attorney of record are appropriate. Counsel, in his declaration, does not establish that he communicated his inability to locate his client to Plaintiff. Absent such communication, the Court finds sanctions are appropriate.

Plaintiff's attorney declares his billing rate is \$700/hour. Because this is an automobile accident case, the case is likely based on a contingency fee. The Court finds \$700/hour is grossly inflated for a basic personal injury case, and also finds Counsel has

not stated anything in the declaration to support such an excessive hourly rate. The Court awards two hours of attorney time to prepare each motion to compel, one hour to prepare each reply, and one hour to appear, for a total of 13 hours. The Court awards the time at the rate of \$300/hour. The Court awards a total of \$3900 in attorneys' fees. The Court also awards four filing fees of \$60 each, for a total of \$240 in costs. Sanctions are sought and imposed against Cano and his attorney of record, jointly and severally, and must be paid within twenty days.

f.

Notice

Plaintiff is ordered to give notice.